



File No.: EXP202304214

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure conducted by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 18, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the COMMUNITY OF OWNERS R.R.R. (hereinafter, the respondent), through the Agreement transcribed below:

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File No.: EXP202304214

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on September 15, 2023. The complaint is directed against the COMMUNITY OF OWNERS R.R.R. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows: The complainant alleges that an email was sent to all co-owners regarding the upcoming owners' meeting, which included a list of individualized monthly heating consumption, identified by apartment and letter.

A copy of the received list is attached to the complaint.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

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The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on April 11, 2023, as evidenced by the acknowledgment of receipt in the file. On April 27, 2023, this Agency received a written response indicating, among other things, the following:

"...in 2019, following the installation of the heating cost allocators, several owners requested the sending of the consumption list, in order to justify and demonstrate the reduction of costs thereafter, due to continuous complaints from several neighbors regarding this matter.

With this list, it was justified and demonstrated that in most homes, the payment was equal to or less than before the cost allocators were installed...

One of the scenarios contemplated by the General Data Protection Regulation that legitimizes the processing of personal data is the satisfaction of the legitimate interest claimed by the controller or a third party. We believe that this interest would apply in this case by disclosing the savings that the installation of the cost allocators has meant for the owners."

THIRD: On August 22, 2023, the proceedings were archived since, from the actions taken and the documentation in the file, no infringing action by the respondent was inferred within the competence of the AEPD, and therefore the complaint was archived.

FOURTH: On September 5, 2023, the complainant requested a copy of the file, which was sent to them on September 6, 2023.

FIFTH: On September 15, 2023, the complainant filed a motion for reconsideration alleging that there was an error in the legal qualification of the reported facts, that there had been a lack of investigative

activity by the AEPD, that the individualized energy consumption data by each supply point could be considered personal data as they refer to an identifiable person, that the data protection regulations were violated in its Articles 14, 6.4, and 21 among others of the GDPR. They request the annulment of the archiving resolution and that an investigative phase be opened, that a correct legal qualification of the reported facts be made, that the illegality of the respondent's action be declared, and that the repetition of the reported processing be prohibited in the future.

SIXTH: On January 3, 2024, and in accordance with the provisions of Article 118 of the LPACAP, a hearing was granted to the respondent, attaching the documentation provided by the appellant, so that, within a maximum period of ten working days, they could submit allegations and present the documents and evidence they deemed appropriate.

The forwarding of the hearing, which was carried out in accordance with the rules established in the LPACAP, was acknowledged on January 12, 2024, as evidenced by the acknowledgment of receipt in the file.

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On January 19, 2024, a written response was received by this Agency indicating, among other things, the following:

“Agreeing with the resolution of the AEPD, which supports and legitimizes the sending of the list, subject of this appeal, carried out by the Community of Property Owners Paseo de Yeserías 33, due to the request of several owners, including the vice president, due to the continuous complaints that arose after the installation of the heating cost allocators. With this list, it was justified and evidenced that in most homes, payments were equal to or less than before the installation of the cost allocators. We emphasize that the sending of the list was solely intended to satisfy the legitimate interest claimed by the responsible party.”

SEVENTH: On February 8, 2024, the appeal for reconsideration filed by A.A.A. against the resolution of this Agency issued on August 22, 2023, which agreed to archive the complaint regarding the COMMUNITY OF PROPERTY OWNERS R.R.R., was upheld, so that it may continue its processing. The notification, which was carried out in accordance with the rules established in the LPACAP, was collected on February 9, 2024, as noted in the acknowledgment of receipt in the file.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

Analyzing the issue, the Supreme Court ruling 2484/2019 of the Contentious-Administrative Chamber (SAN 1711/2018) establishes in its Third Legal Ground in fine that: “[...] we consider that the measurements related to the individual consumption of electricity associated with each supply point and its code, which the distribution companies are obliged to send to the system operator, as they contain information concerning the behavioral habits of an identifiable natural person, are personal data (art. 2.a) of Directive 95/46/EC and art. 3.a) of Organic Law 15/1999 on Data Protection, of December 13), and, as such, are protected by the guarantees established by data protection regulations.”

Therefore, extrapolating to the energy consumption of each resident, it can be appreciated that this data is protected by data protection regulations.

In the present case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since the responding party collects, records, organizes, and retains, among others, the following personal data of natural persons: name, identification number, and location data, among other treatments.

The responding party carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" as "all breaches of security that result in the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

III

Principle of Integrity and Confidentiality

Article 5.1.f) "Principles relating to processing" of the GDPR establishes:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures an appropriate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

In this case, it is noted that the personal data of the complaining party, considering gas consumption as personal data (as argued in the previous legal ground), has been improperly exposed to all co-owners, as it was sent by email as a report, prior to the holding of the Meeting, which included the month-by-month individualized heating consumption, using the floor/door indicator, of each and every neighbor, resulting in a loss of confidentiality.

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the known facts could constitute an infringement, attributable to the responding party, for violation of Article 5.1.f) of the GDPR.

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IV

Classification of the infringement of Article 5.1.f) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1.f) of the GDPR could constitute the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the statute of limitations, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Proposal for sanction for the infringement of Article 5.1.f) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 5.1.f of the GDPR, allows for an initial sanction of 600 € (six hundred euros).

V

Adoption of measures

If the infringement is confirmed, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...", in the resolution that is adopted, the claimed party may be required to demonstrate within one month to this Agency the adoption of the necessary measures to prevent the dissemination of personal data related to gas consumption, without prejudice to others that may arise from the instruction of the procedure.

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It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which could motivate such conduct to initiate further administrative sanctioning procedures.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the COMMUNITY OF OWNERS R.R.R., with NIF ***NIF.1, for the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorato for Data Inspection in the actions prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of the LPACAP, the sanction that may correspond would be 600 euros, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to the COMMUNITY OF OWNERS R.R.R., with NIF ***NIF.1, granting a hearing period of ten business days for them to make allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for making allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 480.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which

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will result in a 20% reduction of its amount. With the application of this reduction, the penalty would be set at 480.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the penalty is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were applicable, the amount of the penalty would be set at 360.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the penalty.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above, 480.00 euros or 360.00 euros, you must make it effective by depositing it into account no.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid. Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On April 27, 2024, the respondent has proceeded to pay the penalty in the amount of 480 euros using one of the two reductions provided for in the previously transcribed Initiation Agreement. Therefore, the acknowledgment of responsibility has not been accredited.

THIRD: The payment made entails the waiver of any action or appeal in the administrative route against the penalty, in relation to the facts referred to in the Initiation Agreement.

FOURTH: The Initiation Agreement transcribed above indicated that it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR,

according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate penalty.
2. When the penalty is solely pecuniary or when a pecuniary penalty and another non-pecuniary penalty can be imposed, but the justification for the...

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In the event of the inadmissibility of the second, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.

Having proceeded with the payment of the pecuniary sanction, in accordance with section 2 of this article, voluntary payment implies the termination of the procedure, except with regard to the restoration of the altered situation. Therefore, it is appropriate to impose the necessary measures to cease the conduct or correct the effects of the infringement.

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES: FIRST: TO DECLARE the termination of procedure EXP202304214, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER the COMMUNITY OF PROPERTY OWNERS R.R.R. to notify the Agency within one month from the date this resolution becomes final and enforceable, of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution.

THIRD: TO NOTIFY this resolution to the COMMUNITY OF PROPERTY OWNERS R.R.R.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of

Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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